

ticipes Curarum; Thole vpon whom Princes doe discharge the greatest Weight of their Affaires; Their *Right Hands*, as we call them. The Next are, *Duces Belli*, Great Leaders; Such as are Princes Lieutenants, and doe them Notable Seruices in the Warres. The Third are, *Gratiosi*; *Fauorites*; Such as exceed not this Scantling; To be Solace to the Soueraigne, and Harmlesse to the People. And the Fourth, *Negotijs pares*; Such as haue great Places vnder Princes, and execute their Places with Sufficiency. There is an Honour likewise, which may be ranked amongst the Greatest, which happeneth rarely: That is, of such as *Sacrifice themselves*, to Death or Danger, for the Good of their Countrey: As was M. Regulus, and the Two Decij.

Of Iudicature.

LVI.



Judges ought to remember, that their Office is *Ius dicere*, and not *Ius dare*; To Interpret Law, and not to Make Law, or Give Law. Else will it be like the Authority, claimed by the Church of Rome; which vnder pretext of Exposition of Scripture, doth not sticke to Adde and Alter; And to Pronounce that, which they doe not Finde; And by Shew of Antiquitie, to introduce Noueltie. Iudges ought to be more Learned, then Wittie; More Reuerend, then Plausible; And more Aduised, then Confident. Aboue all Things, Integrity is their Portion, and Proper Vertue. Cursed (saith the Law) is he that remoueth the Land-marke. The Millaier of a Meere.

Stone

Stone is to blame. But it is the Vniust Iudge, that is the Capitall Remouer of Land-markes, when he Defineth amisse of Lands and Propertie. One Foule Sentence, doth more Hurt, then many Foule Examples. For these doe but Corrupt the Stream; The other Corrupteth the Fountaine. So saith Salomon; *Fons turbatus, & Vena corrupta, est Iustus cadens in causâ suâ coram Aduersario.* The Office of Iudges, may haue Reference, Vnto the Parties that sue; Vnto the Aduocates that Plead; Vnto the Clerkes and Ministers of Iustice vnderneath them; And to the Soueraigne or State about them.

First, for the Causes or Parties that Sue. There be (saith the Scripture) that turne Iudgement into Worme-wood; And surely, there be also, that turne it into Vinegar; For Iniustice maketh it Bitter, and Delaies make it Soure. The Principall Dutie of a Iudge, is to suppress Force and Fraud; whereof Force is the more Pernicious, when it is Open; And Fraud, when it is Close and Disguised. Adde thereto Con-

Sf 3 tentious

tentious Suits, which ought to be spewed out, as the Surfet of Courts. A *Judge* ought to prepare his Way to a Iust Sentence, as *God* vseth to prepare his Way, by *Raising Valleys*, and *Taking downe Hills*: So when there appeareth on either side, an High Hand, Violent Prosecution, Cunning Aduantages taken, Combination, Power, Great Counsell, then is the Vertue of a *Iudge* scene, to make Inequalitie Equall; That he may plant his *Iudgement*, as vpon an Euen Ground. *Qui fortiter emungit, elicit sanguinem*; And where the Wine- Presse is hard wrought, it yeelds a harsh Wine, that tastes of the Grape-stone. *Iudges* must beware of Hard Constructions, and Strained Inferences; For there is no Worse Torture, then the Torture of Lawes. Specially in case of Lawes Penall, they ought to haue Care, that that which was meant for Terrour, be not turned into Rigour, And that they bring not vpon the People, that Shower, whereof the Scripture speaketh; *Pluet super eos Laqueos*: For Penall Lawes Pressed, are a
Shower

Shower of Snares vpon the People. Therefore, let *Penall Lawes*, if they haue beene Sleepers of long, or if they be growne vnfit for the present Time, be by Wile *Iudges* confined in the Execution; *Iudicis Officium est, vt Res, ita Tempora Rerum, &c.* In *Causes* of Life and Death; *Iudges* ought (as farre as the Law permitte) in Iustice to remember Mercy; And to Cast a Seuerer Eye vpon the Example, but a Mercifull Eye vpon the Person.

Secondly, for the *Aduocates* and *Counsell* that *Plead*: Patience and Grauitie of Hearing, is an Essentiall Part of Iustice; And an Ouer-speaking *Iudge* is no well tuned Cymball. It is no Grace to a *Iudge*, first to finde that, which hee might haue heard, in due time, from the Barre; or to shew Quicknesse of Conceit in Cutting off Euidence or Counsell too short; Or to preuent Information, by Questions though Pertinent. The Parts of a *Iudge* in Hearing are Foure: To direct the Euidence; To Moderate Length, Repetition, or Impertinency of Speech; To Recapitulate,

tulate, Select, and Collate, the Materiall
 Points of that, which hath beene said;
 And to Giue the Rule or Sentence. What-
 soeuer is about these, is too much; And
 proceedeth, Either of Glory and willing-
 nesse to Speake; Or of Impatience to
 Heare; Or of Shortnesse of Memorie; Or
 of Want of a Stead and Equall Attention.
 It is a Strange Thing to see, that the Bold-
 nesse of *Advocates*, should preuaile with
Judges; Whereas they should imitate God,
 in whose Seate they sit; who *represseth the*
Presumptuous, and *giveth Grace to the Mo-*
dest. But it is more Strange, that *Judges*
 should haue Noted Fauourites; Which
 cannot but Cause Multiplication of Fees,
 and Suspicion of By-waies. There is due
 from the *Judge*, to the *Advocate*, some
 Commendation and Gracing, where *Cau-*
ses are well Handled, and faire Pleaded;
 Especially towards the Side which obtai-
 neth not; For that vpholds, in the *Client*,
 the Reputation of his *Counsell*, and beats
 downe, in him, the Conceit of his *Cause*.
 There is likewise due to the *Publique*, a
 Ciuill

Thirdly, for that that concernes *Clerks*,
and *Ministers*. The Place of *Iustice*, is an
Hallowed Place; And therefore, not only
the Bench, but the Foot-pace, and Pre-
cincts, and Purprise thereof, ought to be
preserved without Scandall and Corrup-
tion. For certainly, *Grapes*, (as the *Scrip-
ture* saith) will not be gathered of *Thornes* or
Thistles: Neither can *Iustice* yeeld her
Fruit with Sweetnesse, amongst the Briers
and Brambles, of Catching and Poling
Elerkes and *Ministers*. The Attendance of
Courts is subject to Foure bad Instru-
ments.

ments. First, Certaine Persons; that are Sowers of Suits; which make the Court swell, and the Country pine. The Second Sort is of those, that ingage Courts, in Quarells of Iurisdiction, and are not truly *Amici Curie*, but *Parasiti Curie*; in puffing a Court vp beyond her Bounds, for their owne Scraps, and Aduantage. The Third Sort is of those, that may be accounted, the Left Hands of Courts; Persons that are full of Nimble and Sinister Trickes and Shifts, whereby they peruert the Plaine and Direct Courtes of *Courts*, and bring *Iustice* into Oblique Lines and Labyrinths. And the Fourth is, the Poler and Exacter of Fees; which iustifies the Common Resemblance of the *Courts* of *Iustice*, to the *Bush*, whereunto while the Sheepe flies for defence in Wether, hee is sure to loose Part of his Fleece. On the other side, an *Ancient Clerke*, skitfull in Presidents, Wary in Proceeding, and Vnderstanding in the *Businesse* of the *Court*, is an excellent Finger of a *Court*; And doth many times point the way to the *Iudge* himselfe.

Fourthly,

Fourthly, for that which may concerne the *Soueraigne* and *Estate*. *Iudges* ought about all to remember the Conclusion of the *Roman Twelue Tables*; *Salus Populi Suprema Lex*; And to know, that Lawes, except they bee in Order to that End, are but Things Captious, and Oracles not well Inspired. Therefore it is an Happie Thing in a *State*, when *Kings* and *States* doe often Consult with *Iudges*; And againe, when *Iudges* doe often Consult with the *King* and *State*: The one, when there is Matter of Law, interuenient in Bu-
sinesse of State; The other, when there is some Consideration of State, interuenient in Matter of Law. For many times, the Things Deduced to *Iudgement*, may bee *Meum* and *Tuum*, when the Reason and Consequence thereof, may Trench to Point of Estate: I call Matter of Estate, not onely the parts of *Soueraigntie*, but whatsoever introduceth any Great Alteration, or Dangerous president; Or Concerneth ma-
T t 2 nifestly

nifestly any great Portion of People. And let no Man weakly conceiue, that Iust Laws, and True Policie, haue any *Antipathie*: For they are like the Spirits, and Sinewes, that One moues with the Other. Let *Iudges* also remember, that *Salomons Throne*, was supported by Lions, on both Sides; Let them be Lions, but yet Lions vnder the Throne; Being circumspect, that they doe not checke, or oppose any Points of *Soueraigntie*. Let not *Iudges* also, be so Ignorant of their owne Right, as to thinke, there is not left to them, as a Principall Part of their Office, a Wise Vse, and application of Lawes. For they may remember, what the *Apostle* saith, of a Greater Law, then theirs; *Nos scimus quia Lex bona est, modo quis eâ utatur Legitimè.*

Of

Of Anger.

LVII.

IO seeke to extinguish *Anger* vitterly, is but a Brauery of the *Stoickes*. We haue better Oracles : *Be Angry, but Sinne not. Let not the Sunne goe downe vpon your Anger.* *Anger* must be limited, and confined, both in Race, and in Time. We will first speake, How the Naturall Inclination, and Habit, *To be Angry*, may be attempted, and calmed. Secondly, How the Particular Motions of *Anger*, may be repressed, or at least refrained from doing Mischiefe. Thirdly, How to raise *Anger*, or appease *Anger*, in Another.

For the first ; There is no other Way, but to Meditate and Ruminare well, vpon the Effects of *Anger*, how it troubles Mans Life. And the best Time, to doe

T t 3

this,